

25SMCV03272 25SMCV03272

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TENTATIVE RULING

August 13, 2026

25SMCV03272 (Call v. Ebrahimiian)

RELEVANT BACKGROUND

On June 27, 2025, plaintiff Traon Call (Plaintiff) filed his complaint against Arie Ebrahimiian (Defendant). On August 19, 2025, Plaintiff filed his First Amended Complaint (FAC) alleging six causes of action for (1) legal malpractice, (2) breach of fiduciary duty, (3) constructive fraud/ misrepresentation, (4) breach of contract, (5) intentional interference with prospective economic advantage, (6) unfair business practices (Bus. & Prof. Code § 17200).

On March 23, 2026, this Court granted defendant's motion to deem requests for admission admitted. Plaintiff was served by the court clerk with the Court's order on the same date. On March 27, 2026, this Court granted defendant's motion to compel responses to a request for production, special interrogatories and form interrogatories.

INSTANT MOTION

On April 24, 2026, Plaintiff filed the instant motion for relief from the discovery orders issued by the Court on March 23 and 27, 2026, under Code of

Civil Procedure §§ 473(b) and 1008. Defendant filed an opposition. No reply has been filed.

DISCUSSION

“The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect...” (Code Civ. Proc., § 473, subd. (b)).

“When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Id., § 1008, subd. (a).)

Here, Plaintiff moves for relief from the discovery orders issued by the Court on March 23 and 27, 2026, under Code of Civil Procedure §§ 473(b) and 1008 on the basis that “the orders were entered on an incomplete factual record and under the mistaken premise that Plaintiff had served no discovery responses. Plaintiff had served responses and completed a proof of service, but failed to properly present that information to the Court before the rulings. Relief will promote resolution on the merits and will not prejudice Defendant.” (Motion at p. 2.)

But, as Defendant points out in opposition, Code of Civil Procedure 11 § 473(b) is not available to vacate discovery orders, and Plaintiffs request for relief under section 1008 is untimely. (Code Civ. Proc., §§ 473 and 1008 [within 10 days]; *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 274-275.) Further, in any event, Plaintiff's purported lack of knowledge that

he was required to file opposition to the discovery motions does not establish the “mistake, inadvertence, or excusable neglect” required for the requested relief. (Code Civ. Proc., § 473, subd. (b).)

Accordingly,

Plaintiff's motion for relief from the Court's March 23 and 27, 2026 discovery orders is DENIED.